

U. -- Walter Duerrfeld

1. Charges in the Indictment. The defendant DUERRFELD is indicted under Count I (Crimes against Peace), Count II (Plunder and Spoliation constituting War Crimes), Count III (Slave Labor constituting War Crimes and Crimes against Humanity), and Count V (Conspiracy to Commit Crimes against Peace).

2. General Nature of the Evidence Supporting these charges. The evidence relied upon by the Prosecution to support the charges against the defendant DUERRFELD consists of the evidence relating to his activities at I.G. Auschwitz, in Poland, during the period from 1941 to 1945. The general nature of this evidence, is amply covered in Part III of the Preliminary Memorandum Brief and Part IV of this Final Brief.

3. Duerrfeld's Positions from 1933 to 1945. DUERRFELD was the Chief Construction Engineer and Local Manager at I.G. Auschwitz during the period 1941 to 1945. (From 1932 to 1941 he had been a Senior Engineer at the Leuna works). DUERRFELD became a member of the Nazi Party in 1937.

4. Certain Specific Activities of Duerrfeld during the Period 1933 to 1945. (1) The individual responsibility of the defendant DUERRFELD for the crimes charged in this Indictment, is covered by the analysis of the evidence contained in Part III of the Preliminary Memorandum Brief, and Part IV of this Brief. This evidence, relating to the activities of DUERRFELD as Chief Construction Engineer and Local Manager at I.G. Auschwitz from 1941 to 1945, establishes beyond any reasonable doubt that DUERRFELD knowingly participated in the use at I.G. Auschwitz of foreign workers who were compelled by force to come to Germany and work in Germany; of persons who were inmates of concentration camps (including particularly the Auschwitz concentration camp) because of racial, political, or religious reasons; and of prisoners of war in work directly related to the war effort. The evidence establishes that DUERRFELD took the initiative in obtaining such foreign workers, concentration camp inmates and prisoners of war for work at I.G. Auschwitz. The evidence further establishes that the foreign workers, prisoners of war and concentration camp inmates used at I.G. Auschwitz under the supervision